

APPROVED

By Alessandra McCoy at 10:34 am, Apr 04, 2018

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENT, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM CONDITIONAL MUR, MIXED USE RESIDENTIAL EMPHASIS TO NB, NEIGHBORHOOD BUSINESS FOR A PARCEL OF LAND CONSISTING OF ALL OF BLOCK 16, HELLMANS ADDITION SUBDIVISION, CHEYENNE, WYOMING TO BE KNOWN AS PEAK WELLNESS CENTER (LOCATED AT 510 WEST 29TH STREET, BETWEEN O'NEIL AND THOMES AVENUES)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein has applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on April 2, 2018, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved, and the zoning classification of the real property described as The Peak Wellness Center located at 510 W. 29th Street, Cheyenne, Wyoming, is hereby changed to NB, Neighborhood Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

CITY COUNCIL STAFF REPORT - SUMMATION

All of Block 16, Hellman's Addition Subdivision **Peak Wellness Center Zoning Map Amendment Process**

CASE NUMBER: UDC-18-00073
PREPARED BY: Susana Montana

SUBDIVISION CODE: HEA-01

MEETING DATES:	April 2, 2018 – Planning Commission	Public Meeting
	April 9, 2018 – City Council	1 st Reading
	April 17, 2018 – Public Services Committee	1 st Reading
	April 23, 2018 – City Council	2 nd Reading
	May 8, 2018 – Public Services Committee	2 nd Reading
	May 14, 2018 – City Council	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Zone Change Map; List of Neighbors to be Notified; Draft Neighbor Notification Letter.

STAFF RECOMMENDATION: On April 2, 2018, by a vote of 4 to 0, the Planning Commission recommended approval of the zone change request from Conditional MUR, Mixed Use Residential Emphasis to NB, Neighborhood Business district with no conditions.

CITY COUNCIL STAFF REPORT

All of Block 16, Hellman's Addition Subdivision **Peak Wellness Center Zone District Map Amendment Process**

CASE NUMBER: UDC-18-00073
PREPARED BY: Susana Montana

SUBDIVISION CODE: HEA-01

OWNER
Peak Wellness Center, Inc.
510 W. 29th Street
Cheyenne, WY 82001

AGENT:
Karl Cline
Peak Wellness Center Executive Director
510 W. 29th Street
Cheyenne, WY 82001

PROJECT: Peak Wellness Center Zone Change

DESCRIPTION: Request to rezone 69,696 square feet (sf) to all general medical office use.

LOCATION:

1. Legal Description: All of Block 16, Hellman's Addition Subdivision, Cheyenne, Laramie County, Wyoming.
2. Location: Full City block bound by W. 29th and W. 30th Streets, O'Neil and Thomes Avenues, Cheyenne, Wyoming.
3. Address: 510 W. 29th Street, Cheyenne, Wy.

PROPERTY SIZE: 69,696 square feet

CURRENT ZONING: Conditional MUR, Mixed Use Residential Emphasis District.
PROPOSED ZONING: NB, Neighborhood Business District.

EXISTING USE: Counseling offices.
PROPOSED USE: Counseling and primary care medical offices.

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Residential	MR	City
South	Residential, Service, Office	MUR	City
East	Residential	MR	City
West	Residential, Church	MR	City

EXECUTIVE SUMMARY:

This zone change application proposes changing the zoning classification of the subject property from the currently Conditional MUR, Mixed Use Residential Emphasis to a NB, Neighborhood Business district to allow primary care medical office use on the property.

The Applicant's Intent: "Peak Wellness Center is interested in proceeding with rezoning efforts pertaining to the facility located at 510 W. 29th Street. The agency is interested in expanding operations to include integrated care which would allow clients to benefit from primary care (medical) services. Through the transition to the zoning designation of Neighborhood Business (NB), Peak would be able to meet the needs of the community we serve while utilizing current space options already owned by Peak Wellness Center."

Background. In 2005, by Ordinance No. 3658, the former Churchill School site was rezoned from P-Public to the MUR zone with the condition that: "the applicant, its successors and assigns will not use the subject property as a residential treatment center, residential group home, or other residential uses." The MUR zone, even with these conditions, allows general office use but does not allow "medical office" use. The distinction between general office use and medical office use is, typically, related to the "intensity" of use that medical offices bring to an area. For example, typical medical offices have patients scheduled at far greater intervals than general office. Medical offices can schedule patients at 15-minute intervals where general office uses schedule appointments at 1-hour intervals. The traffic associated with medical office use is, therefore, greater than general office use. For this reason, medical offices are not allowed in the MUR zones. But are allowed in the commercial zones such as CB, CBD and NB districts as well as the more commercial mixed-use districts of MUB and MUE.

The Applicant currently offers mental health counseling in offices within the converted school building and wishes to add the "physical" health care to their complement of services. No physical addition to the building is proposed to accommodate this increase in services which would be offered to their current clientele as well as to the general public. Parking would be provided on-site at their current parking lot.

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, on April 2, 2018, by a vote of 4 to 0, the Planning Commission recommended approval of the zone change request from Conditional MUR, Mixed Use Residential Emphasis to NB, Neighborhood Business district with no conditions.

LOCATION/VICINITY MAP:

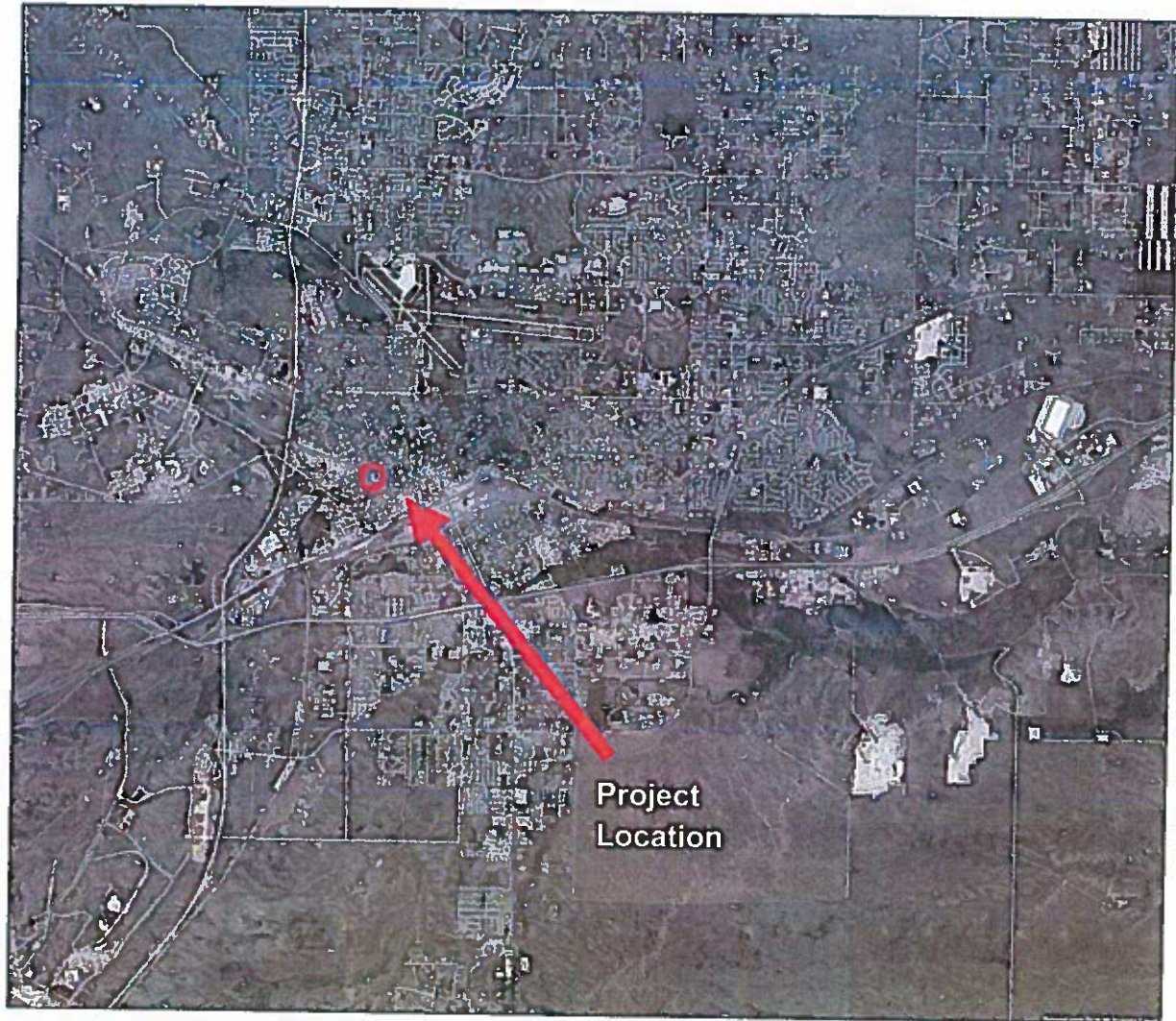


Figure 1 – Project Location/ Vicinity Map
Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Figure 2



Figure 3

Figures 2 & 3 - Site aerial of the subject property located between O'Neil and Thomes Avenues and 29th and 30th Streets.

Sources: Cheyenne/Laramie County GIS Cooperative Program & Google Earth

VIEW OF SUBJECT PROPERTY:

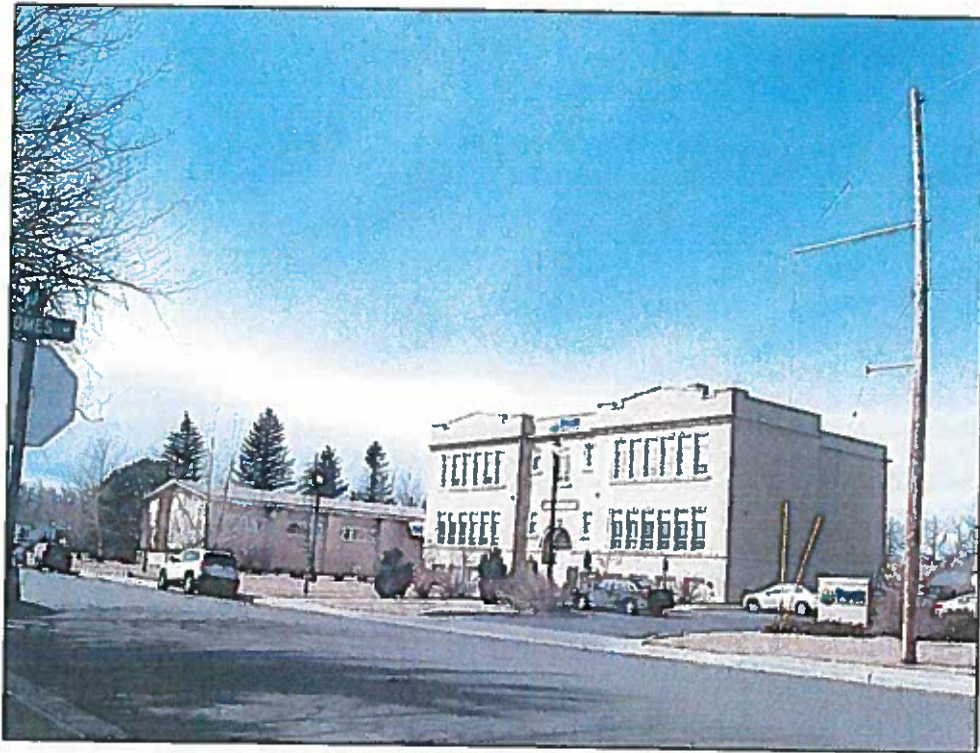


Figure 4 - Subject property along 29th Street Frontage.
Source: Planning & Development Department

ZONE CHANGE DATA: *In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following 8 criteria of UDC Section 2.2.1.d:*

1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

Complies. PlanCheyenne is supportive of this zone change. This parcel lies within the Urban Service Boundary which, by PlanCheyenne Principle 1.2 states: "The major growth of the Cheyenne Area will take place within the Urban Service Boundary to promote efficient long-term use of land and urban services." On the future land use map found in PlanCheyenne, the subject land is currently designated as P-Public. This designation is a remnant of the previous public-school use of the land. In 2005, when the Site was rezoned from P-Public district to Conditional MUR- Mixed Use Residential Emphasis, this future land use designation was not changed to reflect the new Conditional MUR zoning designation or to reflect the surrounding MR, Medium-density Residential or MUR, Mixed Use Residential Emphasis zones.

The PlanCheyenne Urban Residential land use designation includes residential uses as a primary use and includes a wide variety of supporting and complementary uses as

secondary uses. The Mixed Use Residential Emphasis zone seeks a range of residential housing types as well as a mix of retail, office and light trade uses related to the neighborhood—to provide neighborhood business centers.

The Site also lies within a PlanCheyenne “Neighborhood Business Center” land use designation which does not have its own color designation on the PlanCheyenne Future Land Use Map (FLUM) but is distinguished by a large red asterisk (*) on the FLUM. This is due to the small scale and number of these Neighborhood Business Centers interspersed throughout the Plan area. However, the Neighborhood Business Centers are intended to serve the convenience shopping needs of the surrounding neighborhood. They are characterized by a compact scale and pedestrian-friendly design that provides ease of access from adjacent neighborhoods. The Site, as an adaptive reuse of a former, historic public school, is centrally-located among other neighborhood-serving businesses, single-family homes and some multi-family residences. Therefore, the Site and current and proposed uses are consistent with the Neighborhood Business Center land use designation of PlanCheyenne.

The Applicant has requested a PlanCheyenne Future Land Use Plan amendment to change the designation of this Site to the MUR designation with the Neighborhood Business Center asterisk shown on the Site.

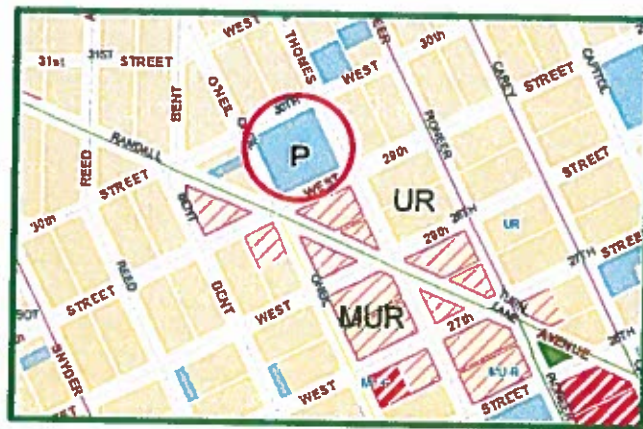


Figure 5 – PlanCheyenne Future Land Use Designation
Source: Cheyenne/Laramie County GIS Cooperative Program

The Cheyenne/Laramie County Metropolitan Planning Organization (MPO) is in the process of updating both the PlanCheyenne Transportation Master Plan as well as its Future Land Use Plan and it would be wise to make this particular amendment when this 2018-19 planning effort is completed. For now, the Neighborhood Business Center “asterisk” designation allows the Site to be rezoned NB, Neighborhood Commercial zoning district.

2. SURROUNDING AREA - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

Complies. The application is compatible with the zoning of nearby property. The property is currently zoned Conditional Mixed Use Residential Emphasis, MUR. The conditions on the MUR zoning are to prohibit residential use of the property as stated in the 2005 rezoning Ordinance 3658:

"Section 4. That the applicant, its successors and assigns, will not use the subject property as a residential treatment center, residential group home, or other residential uses. In the future, should applicant wish to make residential use of the property, applicant shall be required to file a new application for a zoning change to such use in accordance with applicable rules and ordinances."

Because the Governing Body restricted residential use of the property in the MUR zone, this Mixed Use Residential Emphasis *zoning* designation is not appropriate for the Site. The Applicant does not wish to operate any residential use of the property. The organization seeks to add to their operation at the Site what is characterized as "physical" medical health care along with its current mental health counseling services. The general medical care is deemed "medical office" use by the City's land use definition Section 1.4.4 and this use is not a permitted, conditional or administrative use in the MUR zone. The Applicant, therefore, seeks a rezoning to the nearby NB zone which serves both operational proposals: It *does not* allow residential uses (except live/work or mixed-use dwellings—housing above shops) and it *does* allow medical office use as a principal permitted use.

The immediate area is characterized by single-family and multi-family residences as well as neighborhood businesses including a barber shop, hair salon, dry cleaners, locksmith, tax service, insurance company, title company, 2 churches, property management, karate studio, weight loss center, and a health studio. There are small pockets of the NB, Neighborhood Business zones to the northwest of the Site. The NB designation is consistent with the PlanCheyenne Neighborhood Business Center land use designation for the Site and area. The former Churchill School site is also designated an Historic Site and the medical office use would be consistent with the North Capitol Historic District designation because no physical change to the building or Site would occur after the rezoning. The medical office use would occur in existing offices within the building and clients would use the existing parking lots on the Site.

dwellings, would satisfy any residual concerns by neighbors about potential residential care or in-patient care of the Applicant's clients.

4. DEVELOPMENT POTENTIAL - *The ability of the subject property and surrounding vicinity to be developed per the Subdivision Standards in Article 4 considering the proposed zoning.*

Complies. The former Churchill School Site is an historic site and the addition of the medical office use would not warrant any additional development of the property per the Subdivision Standards in Article 4.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

Complies. This application can support the intent and applicability statements of the NB Neighborhood Business zoning district, as stated earlier within this report. The NB zoning district intent is to provide small-scale business services that can meet the needs of residents in the area. Properties lying within the NB zone are subject to the Small-scale Mixed-use and Commercial Design Standards of Section 6.7 of the City's Unified Development Code (UDC). However, this Applicant does not seek any building addition to the historic building or property. The medical offices would be accommodated within the building in existing office space therein.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

Complies. The subject property would be able to meet all the applicable standards if this application is approved. Development options would not be limited by this zone change in the event this specific medical office proposal is not executed. If the specific proposal associated with this application is not executed, the Applicant could continue with their current mental health counseling office uses.

7. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety, or general welfare.*

Complies. Wyoming State Section 15-1-103 (a) (xli) grants authority to municipalities to adopt ordinances which generally promote the public health, safety and general welfare of its citizens. This zone change would not harm the public health, safety, or welfare of the public and, rather, would provide medical care to the Site's neighbors and members of the general public.

8. REVIEW

Agencies with comments:

Development: Susana Montana

1. The property is currently subject to a conditional MUR zoning by Ordinance No. 3658 approved in 2005. The conditions prohibit residential use of the property. The Applicant seeks to operate medical offices on the property and this use is not permitted in the MUR zone. The Applicant seeks a zone change to NB, Neighborhood Business zone which allows medical office use as a principal permitted use. However, the property lies within a P-Public PlanCheyenne Land Use Map designation area which should remain in a P-Public zone. In 2005 when the property was rezoned from the previous public school's P zone to MUR, PlanCheyenne had not been adopted. The extensive planning process for PlanCheyenne began in Spring 2004 and the Plan was first adopted in 2006 and was updated in 2013. It was an oversight on both occasions that the Site's land use designation remained Public rather than the nearby MU-R designation. The Future Land Use Map (FLUM), however, does have a designation for the Neighborhood Business Center land use category that is shown on the map as an asterisk (*) which appears as an "overlay" icon over the "base" land use designation. There is such a Neighborhood Business Center asterisk over both the Site's P-Public and adjacent MU-R area. This Neighborhood Business Center (NB) land use designation would allow the rezoning to NB, Neighborhood Business zone. In the future, it would be wise to amend the FLUM map to show the Site as MU-R with the Neighborhood Business Center asterisk overlay designation.

2. Adding medical offices to the site may change the traffic and parking patterns for the site and area. A traffic study may be required prior to a change of use permit approval.

MPO: Metro Planning Office (MPO), Nancy Olson.

An amendment to the PlanCheyenne Land Use map must be approved before the zone can be changed to accommodate the additional use. [Since this comment, staff has "found" a Future Land Use Map that shows the asterisk (*) for the Site area that indicates the Site lies within a Neighborhood Business Center land use category which allows the NB zoning.]

Please be aware that the additional trips generated by the new use at this location may trigger a TIS. A Transportation Worksheet, ideally prepared by a licensed engineer, needs to be submitted.

Reviewing agencies without comments:

City Engineer: Engineering Department, Amy Allen No Comments

Engineering - General: Engineering Department, Mark Escobedo No Comment

Public Works: Nathan Beauheim No Comment

MPO: Metro Planning Office (MPO), Tom Mason No Comments

Other Comments: *None*

Attachment: Zone Change Map

C: Owner, Agent/Applicant, File

MAP # 1

Peak Wellness Center, Inc.
610 W. 2nd Street, Chicago, IL 60607

Existing Zoning: M-2
Proposed Zoning: M-2

Local Ordinance: 10 of Book 18, Chapter 1
Adoption: City of Chicago, Council Meeting
Held: 11/11/2010

Prepared by: Peak Wellness Center, Inc.
Date: 11/11/2010

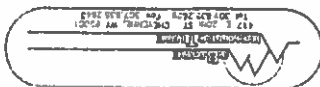
PROJECT: 00000000

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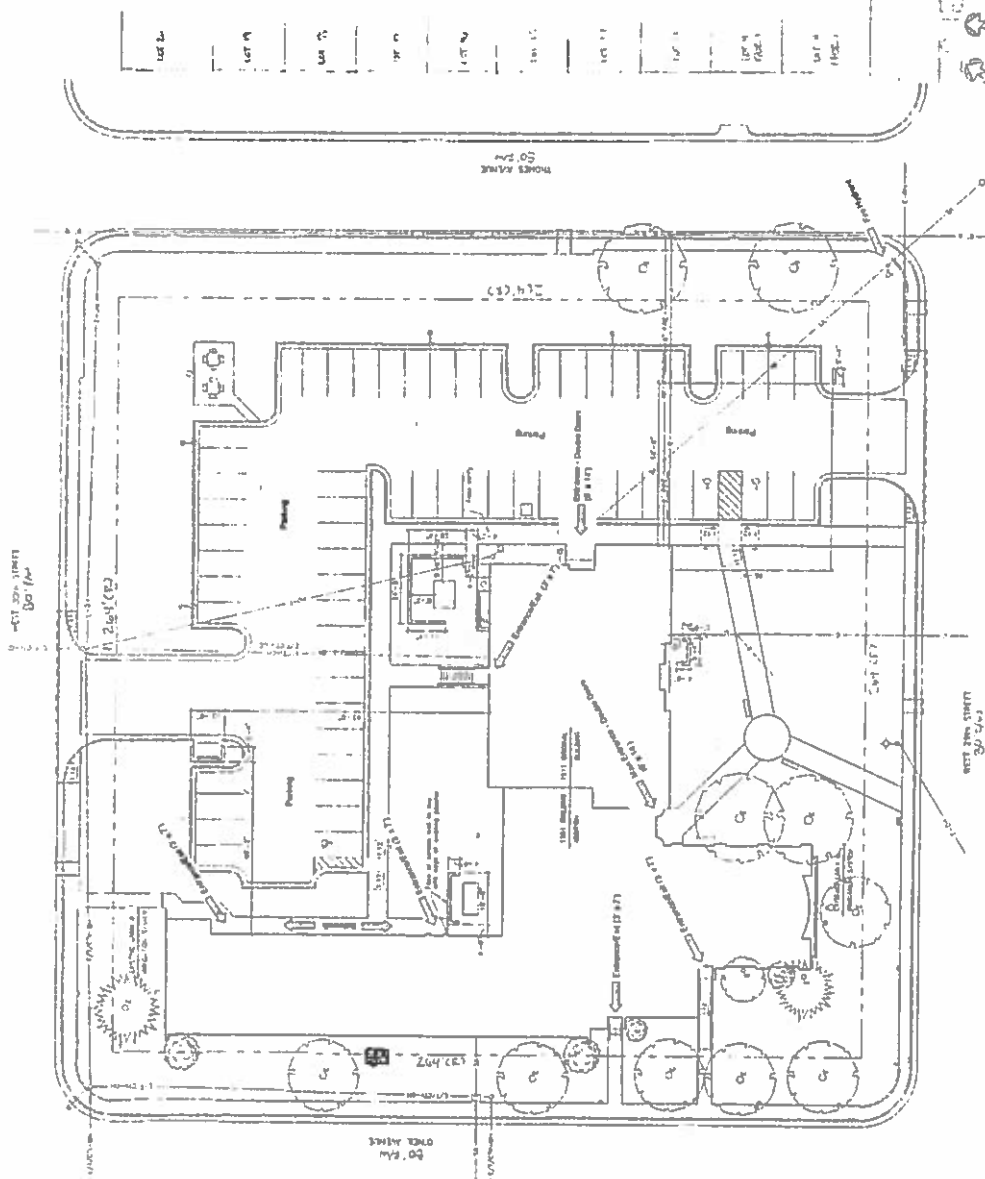
0510
2.22.08
X-3
1" = 20'
SITE PLAN
Scale: 1"=20'

for
ALL OF BLOCK 10, INCLUDING BUILDING
CITY OF CHICAGO

Zone Change Map

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100' 0" 100' 0" 100' 0"



100' 0" 100' 0" 100' 0"